Code of Business & Ethics

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SOP :

POLICY

The Pechanga Resort & Casino policy on Code of Business Conduct & Ethics outlines expected behaviors for all Pechanga Team Members and Management. Further information regarding Pechanga's Code of Business Conduct & Ethics can be found in the manual available from the Department of Ethics.

Situations that involve ethics, values and violations of certain laws are often very complex. No single code of conduct can cover every business situation that you will encounter. Consequently, we have implemented the compliance procedures outlined in the sections of this code entitled "Asking for Help and Reporting Concerns."

The most important message of these procedures is ***when in doubt, ask.*** If you do not understand a provision of this code, are confused as to what actions you should take in a given situation, or wish to report a violation of the law or this code, you should follow those compliance procedures outlined in the sections of this code entitled "Asking for Help and Reporting Concerns." or make a report with the Ethics Helpline at 1-888-396-9040 or the Ethics Website at www.ethicspoint.com.

SCOPE

All Pechanga Resort & Casino Team Members

PURPOSE

This Code of Business Conduct and Ethics outlines expected behaviors for all Pechanga Team Members and Management, independent contractors, consultants, agents, officers and directors, and officials of Pechanga Resort & Casino and Pechanga Development Corporation. In this Code, we refer to all of the foregoing individuals as "Team Members". When this Code refers to "we", "us", or "our", it is referring to Pechanga Resort & Casino and Pechanga Development Corporation.

PR&C will conduct its business fairly, impartially, in an ethical and proper manner, and in full compliance with all applicable laws and regulations. In conducting its business, integrity must underlie all PR&C relationships, including those with guests, suppliers, communities and among Team Members. The highest standards of ethical business conduct are required of all PR&C Team Members/Management in the performance of their responsibilities. Team Members and Management will not engage in conduct, or in any activity that may raise questions as to PR&C's honesty, impartiality or reputation, or other conduct that creates a negative public image of PR&C.

Misconduct and the appearance of impropriety should be avoided at all times.

Team Members/Management will ensure the following:

§ Do not engage in any activity that might create a conflict of interest for PR&C or for themselves individually.
§ Do not take advantage of their PR&C position to seek personal gain through the inappropriate use of non-public PR&C information; they do not abuse their position to seek personal gain.
§ Will follow all restrictions on use and disclosure of information. This includes following all requirements for protecting PR&C information and ensuring that non-Pechanga proprietary information is used and disclosed only as authorized by the owner of the information or otherwise permitted by law.
§ Observe that fair dealing is the foundation for all of our transactions and interactions.
§ Will protect all property, guest and supplier assets and use them only for appropriate PR&C approved activities.
§ Without exception, they will comply with all applicable laws, rules and regulations.
§ Will immediately report any illegal or unethical conduct to Management or other appropriate authorities (i.e. Dept. of Public Safety, Pechanga Gaming Commission, and Department of Ethics).

Every Team Member has the responsibility to ask questions, seek guidance and report suspected violations of this Code of Conduct to their immediate Supervisor/Manager or the confidential Ethics Hotline (1-888-396-9040) or Website at www.ethicspoint.com.

Retaliation against Team Members who come forward to raise genuine concerns will not be tolerated as described in the PR&C Whistleblower Protection policy.

Nothing in this section should be interpreted as interference with the exercise of Team Member rights as guaranteed by federal law to the extent applicable.

Ethical Professional Standards

All Team Members must sign and abide by the Pechanga Resort & Casino Code of Business Conduct and Ethics. This document requires that Team Members understand the code, ask questions, seek guidance, report suspected violations, and express concerns regarding compliance with this policy and related procedures.

The Pechanga Development Corporation Department of Ethics in conjunction with the PR&C Human Resources Dept. will administer ethics and professional standards programs to promote its commitment to integrity and values as set forth by the Code of Business Conduct and Ethics. The Code also ensures that all PR&C Team Members and Leaders maintain compliance with all ethics related laws, rules, and regulations. These programs will inform Team Members of PR&C policies and procedures regarding ethical professional standards and help them to resolve questions and to report suspected violations. Supervisors/Managers are responsible for supporting the implementation of ethics and professional standards programs, and monitoring compliance with PR&C's values and ethical professional standards guidelines through such programs. Supervisors/Managers are responsible for creating an open and honest environment in which Team Members feel comfortable bringing issues forward. Retaliation against Team Members who raise genuine concerns will not be tolerated.

Conflicts of Interest

All of us must be able to perform our duties and exercise judgment without outside influence or impairment, or the appearance of outside influence or impairment, due to any activity, interest or relationship that arises outside of work.

Put more simply, when our loyalty to advance the best interests of Pechanga are affected by actual or potential benefit or influence from an outside source, a conflict of interest exists. We should all be aware of any potential influences that impact or appear to impact our loyalty to Pechanga. In general, you should avoid situations where your personal interests conflict, or appear to conflict, with those of Pechanga.

It is not possible to describe every conflict of interest, but some situations that could cause a conflict of interest include:

- Doing business with family members, a member of the Tribal Council, a member of the Board of Directors of the Pechanga Development Corporation or a member of the Pechanga Gaming Commission;
- Having a financial interest in another company with whom we do business;
- Taking a second job;
- Managing your own business;
- Serving as a director or officer of another business;
- Serving as a director or officer of a non-profit or charitable organization; and
- Diverting a business opportunity from a Pechanga business enterprise to another company.

Any time you believe a conflict of interest may exist, you MUST disclose the potential conflict of interest to your supervisor and to the Director of Ethics.

If you are not comfortable reporting a conflict to your supervisor, consult with one of the designated members of management described in the section of this code entitled "Asking for Help and Reporting Concerns." You can also call the Ethics HelpLine at 1-888-396-9040, make a report at the Pechanga Ethics Website: www.ethicspoint.com, or send an email to ethics@pechanga.com.

With respect to a potential conflict reported by a senior manager or executive officer of the Pechanga Resort & Casino or a member of the Board of Directors of the Pechanga Development Corporation (sometimes referred to in this Code as the "Board"), the Board will evaluate the conflict and make all determinations. The Board of Directors will review the potential conflict and determine if a conflict in fact exists.

If a conflict does exist, the Board of Directors will then determine if the conflict would have an adverse impact on the interests of Pechanga. In certain cases, an activity or transaction may be approved despite the existence of a conflict if no adverse impact exists.

For example, we may approve of the following circumstances:

1) a director, officer or Team Member serving on a charitable board provided that such individual does not make funding decisions with respect to the charitable organization
2) a business transaction with a company in which a director, officer or Team Member has a material financial interest if that transaction is on fair market terms which are no different than we would receive from a completely independent vendor.

All determinations by the Board of Directors regarding conflicts of interest, despite the actual or apparent conflict, shall be documented in writing.

Outside Employment

Sometimes our Team Members desire to take additional part-time jobs or do other work after hours, such as consulting or other fee-earning services. This kind of work does not in and of itself violate our code. However, the second job must be strictly separated from your job with us, and must not interfere with your ability to devote the time and effort needed to fulfill your duties to Pechanga.

You must not engage in any outside activity that causes competition with us or provides assistance to our competitors or other parties (such as suppliers) with whom we regularly do business. You must avoid outside activities that might embarrass or create a negative impression of the Pechanga Resort & Casino or the Tribe. Outside work may never be done on our time and must not involve the use of our supplies or equipment. Additionally, you must not attempt to sell services or products from your second job to us.

Before engaging in a second line of work, you should disclose your plans to your supervisor to confirm that the proposed activity does not conflict with our best interests. The supervisor shall notify the Ethics Department who will determine if there is any potential conflict of interest. If approved by the Ethics Department, the Team Member must notify their supervisor of any change that may impact continued approval.

Relationships with Suppliers

"Suppliers" includes all vendors (current and/or potential) providing services and products to PR&C. Suppliers also include consultants, financial institutions, advisors, and any person or institution which does business with PR&C.

All PR&C purchasing and contractual commitment decisions must be made based on the best value received by PR&C and comply with purchasing and contract policies and procedures. PR&C's process includes obtaining competitive bids, verifying quality and service claims and entering into agreements in writing. Personal, family and/or financial relationships may make it difficult to make objective decisions. PR&C's policy prohibits Team Members from engaging in business on behalf of PR&C with a close friend or relative. Any exceptions must be reported in writing.

Any Team Member who has a relationship with or has a relative who has a relationship with, a supplier or potential supplier must disclose this relationship to the Supervisor/Manager, and the Director of Ethics, and is prohibited from participation in purchasing decisions involving such supplier. Approval of any such transaction must be documented in writing if it is granted. If the only interest a Team Member has in a customer or supplier is because a family member works there, then the Team Member does not need to disclose the relationship or obtain prior approval unless they deal with the customer or supplier.

No Team Member, representative, or agent shall offer or accept any gifts, favors, services, entertainment, or other forms of gratuities from any individual, business entity, or current/potential supplier. Such items may impair judgment in the selection of a vendor. Bribes, kickbacks, loans, unauthorized discounts or acceptance of travel, unrelated entertainment tickets, or payment of conference costs are strictly prohibited.

Gifts

To earn and maintain the highest level of trust and confidence in the integrity of our business operations, we must always treat every person and firm with whom we do business with fairness and impartiality.

We must never give or receive gifts, entertainment or gratuities[1][1] that **could influence or be perceived to influence** business decisions. Our actions must always make it clear that we conduct business on an ethical basis and will not seek or grant special consideration. Remember, we must avoid even the appearance of favoritism.

Accepting Gifts and Entertainment

You are prohibited from soliciting gifts or favors from those with whom we do business. You may not accept gifts of cash, or cash equivalents. Remember, we must avoid even the appearance of favoritism.

You may accept novelty or promotional items or modest gifts related to commonly recognized occasions, such as a promotion, holiday, wedding, retirement or recognition of service (i.e. pens, hats, calendars, coffee mugs, etc.)., if:

- this happens only occasionally;
- the gift was not solicited;
- disclosure of the gift would not embarrass us or the people involved; and
- the value of the gift is under $100.

You may accept an occasional invitation to a sporting activity, entertainment or meal if:

- there is a valid business purpose involved;
- this happens only occasionally;
- it is approved by your supervisor;
- the activity is of reasonable value and not lavish; and,
- the timing of the invitation, entertainment or meal does NOT coincide with the decision to enter into a business relationship with that vendor, or accept or reject that vendors goods or services.

If there is any doubt as to whether or not to accept any gifts, entertainment or gratuities, seek advice from your supervisor or those persons identified in the section of this code entitled "Asking for Help and Reporting Concerns".

Giving Gifts and Entertaining

Gifts of nominal value (under $100) and reasonable entertainment for customers, potential customers and other third parties with whom we do business are permitted.

Keep in mind, any gift or entertainment must always:

· support our legitimate business interests;

· be reasonable and customary, not lavish or extravagant;

· be approved by your supervisor; and

· not embarrass us or the recipient if publicly disclosed.

If you are not sure whether a specific gift or entertainment is permissible, seek advice from your supervisor or those persons identified in the section of this code entitled "Asking for Help and Reporting Concerns".

Bribes or Kickbacks

Under **NO** circumstances can any bribe, kickback, or illegal payment or gift of cash or cash equivalents be made or accepted, either directly or indirectly. We are successful because of our unparalleled guest service and the unmatched quality of our facility, not because of favors granted for bribes or kickbacks.

A gift is something of value given without the expectation of return; a bribe or kickback is the same thing given in the hope of influence or benefit. In some cases, bribes and kickbacks can be considered criminal actions subject to prosecution.

If you violate this policy, you will be subject to disciplinary action, up to and including termination. Note that special rules apply when dealing with government employees.

If there is any doubt as to whether or not to accept any gifts, entertainment, or gratuities, the Team Member should seek the advice from their Supervisor or those persons indentified in the Code of Business Conduct and Ethics, section entitled, "Asking for Help and Reporting Concerns." Again, **when in doubt, ask.**

Disclosure of PR&C Information

It is important to protect the privacy of our Team Members, guests, business relationships, PR&C strategies, intellectual property, and proprietary information. All Team Members must sign a Non-Disclosure/Confidentiality Agreement in consideration of their employment and as an ongoing condition for the continuation of their employment with PR&C. Any inappropriate comment or disclosure that breaches a confidentiality agreement with a business partner or other party will not be tolerated.

Only certain designated Team Members may discuss the Pechanga Resort & Casino or the Pechanga Development Corporation with the news media. All inquiries from the public regarding our business operations or regulatory issues regarding gaming activities shall be referred to the General Manager of PR&C, the PDC Board of Directors, the PDC Director of Public Affairs, and the Public Relations Manager of PR&C.

It is PR&C's policy that all Team Members fully cooperate with all authorized inspections, investigations, examinations, and inquiries. In the event a Team Member is contacted by a government representative or other agency for information pertaining to PR&C, that Team Member should immediately refer them to the office of the General Manager, who is responsible for addressing such requests. Media requests must be referred to the Media Relations Department.

Protecting Intellectual Property and Confidential Information

It is important that you protect our intellectual property and the confidentiality of our information. Confidential or proprietary information includes all information that relates to our business activities or would be helpful to competitors. Proprietary information should be marked accordingly, kept secure and access limited to those who have a need to know in order to do their jobs. Intellectual Property consists of creations of the mind - creative works or ideas embodied in a form that can be shared or can enable others to recreate, emulate, or manufacture them.

Our business relations are built on trust, and our customers and suppliers count on that trust. If you learn information from them that is not otherwise public, you must keep that information confidential also.

We must all be sensitive to the impact of comments made over the Internet through public forums such as chat rooms, blogs, and bulletin boards. In such forums, you may not post any information about our business activities including comments about our products and services, performance, operational strategies, financial results, customers or competitors, even in response to a false statement or question. This applies whether you are at work or away from the office.

Books and Accounts

All PR&C payments and other transactions must be properly authorized, documented, and accurately and completely recorded on PR&C books and records, in accordance with governing accounting principles, established policy and procedures, and internal control practices.

PR&C financial statements must accurately and fairly reflect all transactions. No Team Member will falsely report transactions or fail to report the existence of false transactions in the accounting records in accordance with regulatory guidance. Team Members certifying

the correctness of records, including vouchers, markers, purchase requisitions, or invoices shall have reasonable knowledge that the information is correct, valid, and proper.
Team Members are personally accountable for PR&C funds over which they have control. These Team Members are expected to handle them with the strictest integrity and ensure all transactions are executed in accordance with PR&C policy and procedures, applicable regulations, and Management authorization.
In certain circumstances information derived from our records may be provided to our business partners, regulators, government agencies and the Tribe. Our internal and external auditing functions help ensure that our financial books, records and accounts are accurate. Therefore, Team Members must provide to our accounting department, internal auditing staff, audit committee and independent public accountants all the pertinent information that they may request. We encourage open lines of communication with our audit committee, accountants and auditors and require that all our Team Members cooperate with them to the fullest extent possible. It is unlawful for you to fraudulently influence, induce, coerce, manipulate or mislead our independent public accountants for the purpose of making our financial statements misleading.
Our records should be retained or discarded in accordance with our record retention policies and all applicable laws and regulations. From time to time we are involved in legal proceedings that may require us to make some of our records available to third parties. Our legal counsel will assist us in releasing appropriate information to third parties and provide you (or your supervisor) with specific instructions. It is a crime to alter, destroy, modify or conceal documentation or other objects that are relevant to a government investigation or otherwise obstruct, influence or impede an official proceeding. The law applies equally to all of our records, including formal reports as well as informal data such as e-mail, expense reports and internal memos. If the existence of a subpoena or a pending investigation is known or reported to you, you should immediately contact your supervisor and you must retain all records that may pertain to the investigation or be responsive to the subpoena.
If a Team Member is unsure about the accounting treatment of a transaction, believe that a transaction has been improperly recorded, or otherwise have a concern or complaint regarding an accounting matter, our internal accounting controls, or an audit matter, they should confer with their Supervisor, the Chief Financial Officer of Pechanga Development Corporation, or the Chief Financial Officer of PR&C, or make a report to the Ethics HelpLine at (888) 396-9040 or the Ethics Website at www.ethicspoint.com.

Use of PR&C Assets

We have a responsibility to the Tribe, Team Members, our business partners, and our guests to protect PR&C assets entrusted to us from loss, theft, misuse and waste. PR&C assets and funds may be used only for business purposes and may never be used for illegal purposes. Incidental personal use of telephones, fax machines, copy machines, personal computers, e-mail and similar equipment is generally allowed if it is occasional, there is no significant added cost to us, it does not violate any specific employment policy of the company such as sexual harassment, and it does not interfere with your work responsibilities and is not related to an illegal activity or outside business. This allowance for personal use is not considered to be an exception to Pechanga Resort & Casino policies relating to solicitation and/or distribution. If you become aware of theft, waste or misuse of our assets or funds or have any questions about your proper use of them, you should speak immediately with your supervisor and the Director of Ethics.
You are personally accountable for the funds over which you have control while on the job. You are expected to handle them with the strictest integrity and ensure all transactions are executed in accordance with our policies and procedures, applicable regulations, and management authorization. All cash received shall be promptly recorded, secured, and deposited in accordance with our standard operating procedures.

No undisclosed or unrecorded PR&C funds shall be established for any purpose, nor shall PR&C funds be placed in any personal account. No payment on behalf of PR&C shall be made with the understanding that it will be used for some purpose other than that stated.

PR&C assets are to be used for PR&C business only, unless otherwise allowed by corporate policy. All disposals of assets are to comply with PR&C's policies and procedures.
Complimentary items ("comps") are assets of PR&C and misuse of them will be considered a violation of the PR&C Code of Business Conduct and Ethics.

Complimentary items or "comps" are assets of the Pechanga Resort & Casino and misuse of them will be considered a violation of this code.

A Team Member, who becomes aware of theft, misuse, or waste of PR&C assets or funds or have any questions about the proper use of them, should speak immediately with a Supervisor and the Director of Ethics.

Computer Usage and Electronic Mail

Use of the internet and email using our Internet facilities and accounts is subject to the following restrictions, as well as the terms of any other Internet usage or email policies set forth in your Team Member handbook.

We do not allow our systems to be used in creating, receiving, sending or storing data that may reasonably be considered to be offensive, defamatory, obscene or harassing. Such data includes but is not limited to sexual images and comments, racial and gender-based slurs or anything that would reasonably be expected to offend someone based on their disability, age, religion, marital status, sexual orientation, political beliefs, national origin or culture or any other factor protected by law. Any such use would violate this policy and violates the company's policy against harassment. In particular, the display of any kind of sexually explicit image or document on any of our systems is a violation of the company's policy on sexual harassment. Team Members who are aware of the misuse of these systems by other Team Members must report the misuse to a supervisor, the Director of Ethics, or the Ethics HelpLine immediately.

Our systems shall not be used in a manner that would otherwise violate any other section of this code and/or personnel policies and procedures of Pechanga Resort & Casino, including the conducting of political or other prohibited activities during work

hours.

We reserve the right to install software and systems that can monitor and record all internet usage. We want you to be aware that our security systems are capable of recording (for each and every user) each World Wide Web site visit, each chat, newsgroup or email message, and each file transfer into and out of our internal networks, and we reserve the right to do so at any time. No Team Member should have any expectation of privacy as to his or her Internet usage. Our managers will review internet activity and analyze usage patterns, and they may choose to publicize this data to assure that company internet resources are devoted to maintaining the highest levels of productivity. Any Team Member who attempts to disable, defeat or circumvent any monitoring system will be subject to disciplinary action. We reserve the right to inspect any and all files stored in private areas of our network in order to assure compliance with policy.

This company's internet facilities and computing resources must not be used knowingly to violate the laws and regulations of the Tribe or any other nation, or the laws and regulations of any state, city, province or other local jurisdiction.

Any software or files downloaded via the internet may be used only in ways that are consistent with their licenses or copyrights.

No Team Member may use our internet facilities to deliberately propagate any virus, worm, or Trojan horse or for any other purpose which would injure or disrupt our internet facilities or systems or those of any third party.

Whistleblower Protection

The purpose of this policy is two-fold: (1) to encourage the reporting of suspected, or reasonable belief of unethical or illegal activities including, but not limited to, gross mismanagement, waste, fraud, abuse or neglect of duty, employment extortion; and (2) to protect Team Members, including Management and elected board members of Pechanga, against retaliation for the reporting of such wrongful activities.

Team Members are encouraged to follow the appropriate chain of command (i.e. department or direct Supervisor/Manager, etc.) to report or make claims about what they believe to be an unethical or illegal activity. However, in the event a Team Member wishes to remain anonymous, they may utilize the confidential Ethics HelpLine (888) 396-9040 or the Ethics Website at www.ethicspoint.com to report such activity.

Team Members who knowingly make fraudulent or frivolous charges and Team Members who knowingly disclose false information with disregard for the truth or confidentiality will be subject to disciplinary action up to and including termination.

PR&C Management is prohibited from taking retaliatory action against any Team Member because he/she engages in any of the following protected activities, regardless of whether the matter reported in fact turns out to have been an issue:

§ Discloses, threatens to disclose, or is about to disclose to a Supervisor/Manager or to a tribal or public body, an activity, policy, or practice that the Team Member reasonably believes is in violation of a law, rule, or regulation of PR&C; this activity, policy or practice may be by, on the behalf of, or involving PR&C, Management, co-Team Member or patrons.

§ Provides information to, or testifies before, any tribal or public body conducting an investigation, hearing, or inquiry into any violation of law, rule, or regulation of PR&C.

§ Assists or participates in a proceeding to enforce provisions of this policy.

§ Objects to, opposes, or refuses to participate in any activity, policy, or practice which the Team Member reasonably believes:

- Is in violation of a law, rule, or regulation of PR&C
- Is fraudulent or criminal
- Is incompatible with a clear mandate of tribal/public policy concerning public health, safety, welfare, or protection of the environment

Retaliation can be defined as an adverse action taken against a Team Member because of reporting suspected unethical or illegal activities. The most obvious form of retaliation is termination. However, it may also include disciplinary action, suspension, involuntary transfer, demotion, sudden shift to negative performance reviews, harassment, failure to grant pay raises, move to less desirable work location, benefits or privileges, or threats to take any of these kinds of retaliatory actions. Retaliation can be direct and obvious or it can be subtle.

Any Team Member, Supervisor/Manager who takes retaliatory action against another Team Member as a result of the protected activity is in violation of this policy and disciplinary action will be administered.

Violence in the Workplace

The safety and security of PR&C Team Members and guests is of vital importance. PR&C has a Zero Tolerance policy for workplace violence. Acts or threats of physical violence, including intimidation, harassment and/or coercion, which involve or affect PR&C or which occur on PR&C property will not be tolerated.

Workplace violence is conduct which is intended to cause another individual to reasonably fear for his or her personal safety or the safety of his or her family, friends, and/or property. It also includes conduct that is intended to create an abusive or intimidating work environment for one or more Team Members. If the matter is urgent and an immediate threat to life, property or the safety of others exists, a Team Member shall immediately notify the PR&C Department of Public Safety by dialing 770-2610. When the risk has passed or been neutralized, make an immediate report to the Supervisor.

A Team Member may remain anonymous, by utilizing the Ethics HelpLine (888) 396-9040 or the Ethics Website (www.ethicspoint.com) to make a report. Any Supervisor/Manager who becomes aware of a complaint of workplace violence must contact a designated member of senior management immediately.

Asking For Help and Reporting Concerns

We take this code seriously and consider its enforcement to be among our highest priorities, but we also acknowledge that it is sometimes difficult to know right from wrong. That's why we encourage open communication. ***When in doubt, ask.*** Whenever you have a question or concern, are unsure about what the appropriate course of action is, or if you believe that a violation of the law or this code has occurred:

· Talk with your immediate supervisor. He or she may have the information you need, or may be able to refer the matter to an appropriate source, including legal counsel as circumstances warrant.

· If you are uncomfortable talking with your immediate supervisor, contact

(i) other management personnel in your department with whom you feel comfortable,

(ii) the Vice President of the Department of Human Resources/Talent Management,

(iii) the Director of Ethics, or

(iv) any member of the Board of Directors of Pechanga Development Corporation.

If you are not comfortable with these channels, or would prefer to remain anonymous, you can report a concern with the Ethics HelpLine at 1-888-396-9040 or the Ethics Website at www.ethicspoint.com.

Pechanga Resort and Casino Human Resources Dept. (951) 770-8650

Pechanga Development Corporation, Ethics Department (951) 770-2355
Pechanga Resort & Casino, General Manager, (951) 770-2500
Pechanga Development Corporation, Board of Directors, (951) 770-2592

The term "gratuities" as defined by this Code of Conduct does not apply to "tipping" by patrons of Pechanga Resort & Casino in the normal course of business, i.e., tips received by servers, dealers, etc.
Revision to ID #11693 by Michelle Green on 3/22/2011

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